

Cal.App.5th 276, 311-312 [absent a fiduciary duty, there must be evidence of some transaction, i.e., direct dealings between the plaintiff and the defendant].)

In *Rattagan v. Uber Technologies, Inc.* (2024) 553 P.3d 1213, 1238, the California Supreme Court recently confirmed that the transactional relationship required to state a fraudulent concealment claim requires direct dealings between plaintiff and the defendant. “Such a transaction must necessarily arise from direct dealings between the plaintiff and defendant; it cannot arise between the defendant and the public at large.” (*Rattagan, supra*, 553 P.3d at 1238, citing *Bigler-Engler, supra*, 7 Cal.App.5th at 312.)

Here, FMC submits evidence that Plaintiff purchased the Vehicle from Cypress Ford; Cypress Ford is not an agent of FMC; she had no communications with FMC; and her purchase of the Vehicle was not based on any advertising by FMC. (UMF ## 1-3, 7, 14.) These facts are sufficient to meet FMC’s burden of establishing there was no transactional relationship between it and Plaintiff triggering a duty to disclose.

As Plaintiff did not oppose this motion, she fails to meet her burden of creating a triable issue of material fact, so the motion must be granted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404433	WIPF VS DESERT SANDS UNIFIED SCHOOL DISTRICT	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON 2ND AMENDED COMPLAINT OF MARK WIPF BY DESERT SANDS UNIFIED SCHOOL DISTRICT, DENNIS ZINK, SARIT SAIG

Tentative Ruling: Denied.

Responding Plaintiffs to provide notice pursuant to CCP 1019.5.

This is an employment matter. Mark Wipf (“Plaintiff”) is employed by the Desert Sands Unified School District (“District”). He was hired in 2006 to teach Advanced Placement (“AP”) Government classes. He contends in November 2018 he received his first written reprimand for using a video that someone complained about. While the Curriculum Director wrote Plaintiff up and found the video inappropriate, she admitted at the meeting to never actually viewing the video. He received another reprimand in February 2021 but was not given any facts regarding his alleged bad conduct and no due process to check the allegations. In May 2021, he contends that he was vindictively demoted by Dennis Zink (“Zink”) and reassigned to teach regular world history. He alleges that his demotion was for the improper purpose to try and inflate the AP government scores, so the school would have the higher test scores than any other high school in the District. Plaintiff alleges that Zink and Sarit Saig (“Saig”) imposed higher standards on him than they did on other world history teachers. In March 2024, Plaintiff contends that Saig issued Plaintiff a written reprimand for unprofessional conduct. He contends the reprimand was based on false allegations and was done intentionally and maliciously to create a false case against Plaintiff for further demotion, termination, or cause him to resign. These conduct was allegedly done due to Plaintiff, age, national origin, and gender.

The operative pleading is the Second Amended Complaint (“SAC”). It contains the following causes of action: (1) discrimination based on race/national origin/ancestry, age, and gender/sex; (2) harassment based on race/national origin/ancestry, age, and gender/sex; (3) failure to prevent discrimination and harassment; (4) retaliation; (5) hostile work environment; and (6) libel.

Defendants Zink and Saig bring this motion. They seek summary adjudication of the request for punitive damages against these defendants and the sixth cause of action for libel. They argue that there are no facts or evidence that Zink and Saig acted with malice or oppression to support punitive damages. They contend they are immune from liability for punitive damages under Government Code § 818. They argue the sixth cause of action for libel fails because his in-classroom performance evaluation consisted of opinion, which is not actionable; employee evaluations are privileged; and Plaintiff does not plead malice.

In opposition, Plaintiff contends that there is a triable issue of material facts as to whether punitive damages are appropriate. Plaintiff argues that the sixth cause of action for libel is valid. He asserts that it is not based on opinion regarding performance but on false factual allegations made in the written reprimand, which is not opinion. He contends that Civil Code § 47 is not applicable. He asks for leave to amend if the Court is inclined to grant the motion.

Summary Judgment

A motion for summary judgment attacks the entire pleading. To grant a motion for summary judgment, the moving party must be entitled to judgment in its favor. (CCP § 437c(c).) A motion for summary adjudication pertains to one or more cause of action, affirmative defense, claim for damages, or issue of duty. (CCP § 437c(f)(1).) If a motion for summary adjudication is granted, the matter will continue to proceed to trial on the remaining issues. A defendant meets her burden in a motion for summary judgment/adjudication by doing one of the following: (1) presenting affirmative evidence negating an essential element of plaintiff's cause of action; (2) showing a complete defense; or (3) showing that plaintiff does not possess and cannot reasonably obtain needed evidence. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826.) When a defendant has met her burden, it then shifts to plaintiff to show that a triable issue of fact exists.

Procedural Issue(s)

Motions for summary judgment and summary adjudication must include a separate statement as part of their moving papers. (CCP § 437c(b)(1).) The separate statement must set "forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (*Id.*) A separate statement is required to separately identify:

- (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and
- (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty or affirmative defense that is the subject of the motion.

(California Rules of Court, rule 3.1350(d)(1).) It is required to be in a two-column format, which states in numerical sequence the undisputed material fact and evidence establishing the undisputed facts in the first column. (*Id.* at (d)(3).)

As pointed out by Plaintiff in opposition, the separate statement only addresses the facts pertaining to the request for punitive damages. It addresses punitive damages twice, in section A and B of the separate statement. This appears to be a scrivener's error.

Evidentiary Objection(s)

Plaintiff objection Nos. 3 and 6 are overruled.

Punitive Damages

Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (California Civil Code §3294(a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294(c)(1).) Despicable conduct has been defined as bile, base or contemptible conduct. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Oppression is despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civil Code §3294(c)(2).) Fraud includes intentional misrepresentations, deceit and concealment of material facts. (*Id.* at (c)(3).)

Defendant Zink

The only cause of action asserted against Zink is the second cause of action. It is based on allegations that Zink improperly removed Plaintiff from his AP position and reassigned him to teach another subject; required Plaintiff to submit weekly lessons plans, which signaled to his peers that he was untrusted; and manipulated Plaintiff’s performance rating to create a misleading record. (SAC, ¶¶ 52-54.) The SAC also alleges that Zink also intentionally assigned him to an unfavorable teaching schedule with no breaks, which he knew would be harder for an older teacher to do. (SAC, ¶ 19.) It is alleged that Zink also intentionally required Plaintiff to attend peer meetings to teach him how to teach, after he had been teaching for 40 years, in an attempt to damage and destroy his professional reputation. (SAC, ¶ 20.)

Moving Defendants contend that the reassignment of Plaintiff out of AP classes and into world history classes does not support malice or oppression because Plaintiff was not reassigned for an improper purpose but due to declining enrollment in the AP class and low passage rate of the AP examination. With the moving papers, Zink provides a declaration that indicates that from 2018-2021, the District had become concerned about Plaintiff’s instructional delivery, willingness to follow adopted curriculum, and ability to effectively prepare students to take and pass the AP examination. (Declaration of Dennis Zink, ¶ 6.) His student’s participation in the AP exam had declined. (*Ibid.*) In May 2021, he rated unsatisfactory in the area of creating and maintaining effective environments for student learning and needs to improve in the area of understanding and organizing subject matter for student learning. (*Ibid.*) The District believed that Plaintiff would be more effective in a world history assignment than in his AP assignment. (*Ibid.*) Zink asserts that he did not take any different or unusual steps with Plaintiff in the process of reassigning him and it was done to ensure the school site was effectively providing academic services to the student population. (*Id.* at ¶ 9.) Zink asserts that this was not a demotion. (*Ibid.*) This evidence would be sufficient to meet Zink’s initial burden, if the only allegations pertaining to Zink were the demotion. However, the SAC also alleges that Zink engaged in other conduct to humiliate Plaintiff – like requiring him to submit weekly lesson plans and improperly manipulated his performance rating to create a misleading record. Zink does not address these remaining allegations in the SAC regarding Zink. He also does not argue that these remaining arguments are not sufficient to establish malice, oppression, or fraud. Due to this, Zink has not met his initial burden regarding punitive damages. DENIED.

Defendant Saig

The second and sixth causes of action are asserted against Saig. It is alleged that she knowingly presented Plaintiff with a fabricated and defamatory evaluation in February 2024 that was filled with false accusations that Saig knew were inaccurate. (SAC, ¶¶ 51 and 80.) It is alleged that Saig improperly issued a written reprimand based on the fabricated claims asserted in the February 2024 evaluation. (*Ibid.*) The SAC also alleges that Saig intentionally required Plaintiff to turn in weekly lesson plans and attend peer meetings to teach him how to teach in an attempt to destroy his professional reputation. (*Id.* at ¶¶ 19 and 20.) She also allegedly assigned him an unfavorable teaching schedule with no breaks, knowing that this would be hard on an older teacher. (*Id.*)

Like with Zink, Moving Defendants only addresses one of the allegedly wrongful conduct on the part of Saig asserted in the SAC. They also fail to address whether these remaining arguments are sufficient to establish malice, oppression, or fraud. As such, Saig has not met her initial burden as to the request for punitive damages. DENIED.

Government Code § 818

Moving Defendants also contend that the request for punitive damages should be denied due to Government Code § 818. Under Government Code § 818, “[n]otwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” Moving Defendants argue that they cannot be liable for punitive damages because the actions at issue were done within the course and scope of their employment. They assert that the imposition of punitive damages would violate Government Code § 818. This assertion is incorrect. Government Code § 818 applies to government entities not employees of government entities.

The liability of public entities and the liability of public employees are separately and distinctly provided for in the Government Code. Section 815 provides in essence that except as otherwise provided by statute a public entity is not liable for injuries caused by its conduct or that of its employees. In contrast, section 820, subdivision (a), provides: “Except as otherwise provided by statute (including Section 820.2) a public employee is liable for injury caused by his act or omission to the same extent as a private person.” Section 818 setting forth the immunity for punitive damages expressly pertains only to public entities. There is no corresponding immunity provision pertaining to public employees. Thus, a public employee may be liable for punitive damages like a private person but unlike a public entity which is specifically immune. (*Runyon v. Superior Court* (1986) 187 Cal.App.3d 878, 881.) Moving Defendants cite to no authority to support its assertion. DENIED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2600637	WAYNE VS UBER TECHNOLOGIES, INC.	HEARING ON MOTION TO COMPEL ARBITRATION BY UBER TECHNOLOGIES, INC.

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, September 22, 2026 at 8:30 a.m. in Department PS2.